Galveston County District Court

Cause No. 2024-CV-0024

Richard Smith, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	12-5-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant, through its undersigned counsel, files this Original Answer to Plaintiff's Original Pettiion and respectfully shows the Court as follows.

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as permitted by Rule 92 of the Texas Rules of Civil Procedure.

For its affirmative defenses, Defendant asserts first that Plaintiff's own negligence proportionately caused the collision, in that Plaintiff failed to keep a proper lookout and failed to confirm that the adjacent lane was clear before moving into it. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility.

Defendant asserts second that the collision and the injuries claimed were caused in whole or in part by the acts or omissions of a third party, and Defendant requests that the responsibility of such persons be submitted to the jury.

Defendant asserts third that Plaintiff failed to mitigate damages by not following reasonable medical advice and by incurring treatment that was not reasonably necessary for the injuries arising from the collision.

Defendant reserves the right to amend this Answer as discovery proceeds.